

02:00 PM **LINE 2**

21-CIV-02564

PEARL WU, MD, ET AL VS. THE PERMANENTE MEDICAL GROUP, INC.

PEARL WU
THE PERMANENTE MEDICAL GROUP, INC.

TIMOTHY C. TRAVELSTEAD
SPENCER DAVIDSON

Motion to be Relieved as Counsel

TENTATIVE RULING:

The hearing is continued to July 8, 2026.

02:00 PM **LINE 3**

22-CIV-05115

MARIA TORRECILLA-FLORES VS. STATE OF CALIFORNIA

MARIA TORRECILLA-FLORES
STATE OF CALIFORNIA (CALTRANS.)

JACQUELINE K. OH
JOSE GONZALEZ

Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendant State of California's Motion for Summary Judgment or, in the Alternative, Summary Adjudication is **DENIED**.

Plaintiff Maria Torrecilla-Flores' Objections to Evidence are **SUSTAINED** to Nos. 5–9 and otherwise are **OVERRULED**.

Defendant State of California's Evidentiary Objections are **SUSTAINED** as to Nos. 1–2, 4–8, 10–16, 18 and otherwise are **OVERRULED**.

Defendant State of California (Caltrans) seeks summary judgment on plaintiff Maria Torrecilla-Flores's First Amended Complaint (FAC), which asserts a single cause of action for dangerous condition of public property, based on a December 13, 2021 incident in which Torrecilla-Flores was injured by a falling tree while traveling south on Interstate 280. (April 5, 2023 FAC, ¶¶ 13–40.)

The elements of a cause of action against a public entity for a dangerous condition are, *inter alia*, (1) the property was in a dangerous condition at the time of the injury and (2) the condition was either (a) created by the negligent or wrongful act of the entity's employee in the scope of employment or (b) extant for sufficient time prior to the injury for the entity to have taken protective measures and the entity had actual or constructive notice of the condition. (Gov. Code, § 835; *Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1104.) Caltrans contends Torrecilla-Flores cannot establish either of these elements.

While Caltrans also seeks summary adjudication of multiple issues in the alternative, each of the identified issues are merely elements of the single cause of action or the cause of action itself. (See Feb. 6, 2026 Motion for Summary Judgment, at p. 2.) Because summary adjudication may only be granted if it completely disposes of a cause of action (Code Civ. Proc., § 437c, subd. (f)(1)), summary adjudication here may only be granted or denied in line with summary judgment.

A. Legal Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ.
